

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA,
SITTING IN ITS OCTOBER TERM, A. D. 2024.

BEFORE HER HONOR: SIE-A-NYENE G. YUOH CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA ASSOCIATE JUSTICE
BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY, SR ASSOCIATE JUSTICE
BEFORE HER HONOR: CEATNEH D. CLINTON-JOHNSON..... ASSOCIATE JUSTICE

Mutual Benefit Assurance Company (MBAC),)
represented by and thru its authorized)
representative and all other officers of the City of)
Monrovia, Liberia.....Informant)

Versus)

) BILL OF INFORMATION

Bea Mountains Mining Corporation (BMMC),)
represented by and thru its General Manager, Mr.)
Halil Ozdemir of the City of Monrovia,)
Liberia..... Respondent)

GROWING OUT OF THE CASE:)

Mutual Benefit Assurance Company (MBAC),)
represented by and thru its authorized)
representative and all other officers of the City of)
Monrovia, Liberia.....Appellant)

Versus)

) APPEAL

Bea Mountains Mining Corporation (BMMC),)
represented by and thru its General Manager, Mr.)
Halil Ozdemir of the City of Monrovia,)
Liberia..... Appellee)

GROWING OUT OF THE CASE:)

Mutual Benefit Assurance Company (MBAC),)
represented by and thru its authorized)
representative and all other officers of the City of)
Monrovia, Liberia.....Petitioner)

Versus)

) PETITION
) FOR A WRIT OF
) PROHIBITION

Her Honor Eva Mappy Morgan, Chief Judge,)
His Honor Chan Chan A. Paegar, Associate)
Judge, and His Honor Othello S. Payman,)
Associate Judge..... 1st Respondent)

And)

Bea Mountains Mining Corporation (BMMC),)
represented by and thru its General Manager, Mr.)
Halil Ozdemir of the City of Monrovia,)
Liberia.....2nd Respondent)

GROWING OUT OF THE CASE:

Bea Mountains Mining Corporation (BMMC),
represented by and thru its General Manager, Mr.
Halil Ozdemir of the City of Monrovia,
Liberia..... Plaintiff

Versus

Mutual Benefit Assurance Company (MBAC),
represented by and thru its authorized
representative and all other officers of the City of
Monrovia, Liberia.....Defendant

ACTION OF DEBT

Heard: May 2, 2023

Decided: February 18, 2025

MR. JUSTICE KABA DELIVERED THE OPINION OF THE COURT.

This Supreme Court has held in a long line of opinions that “in order for a bill of information to lie, the matter forming the basis of the information must have been pending before the Supreme Court, or decided by it; there must be an act to usurp the province of the Court; there must exist some irregularities or obstruction in the execution of the Supreme Court’s mandate, or there must have been a refusal to carry out the Supreme Court’s mandate.”

This Court has also held that “the purpose of a bill of information is to review and correct any irregularity in the execution of a mandate from the Supreme Court to a lower court or the proper remedy by which to secure enforcement of a mandate of the Supreme Court to a lower court when the judge of the lower court has failed or refused to carry out such mandate in conformity with its terms, or that the issues which form the core of the bill of information must have been pending before the Supreme Court or decided by it”. *The Intestate Estate of Kwia Nyene Howe v. His Honor Nelson T. Tokpa, et al*, Supreme Court Opinion, October Term 2022; *The Intestate Estate of Musa M. Kamara, Sr. v. Her Honor Eva Mappy Morgan, et al*, Supreme Court Opinion, October Term 2022; *Kpoto v. Kpoto*, 34 LLR 371 (1987); *Alhaji Bankollie Kromah v. His Honor Hall W. Badio and Martha M. Hill*, 34 LLR 85 (1986); *Fatima Massaquoi-Fahnbulleh v. R. D. Urey and Morris Massaquoi*, 25 LLR 432 (1977).

To give a clear picture of this matter, it is appropriate to outline in this Opinion the history of this case for which this current bill of information grew. The records revealed that in December 2012, the Aureus Mining Inc. (now Bea Mountains Corporation) respondent herein, entered into a construction contract with the International Construction & Engineering (Liberia) Inc. (ICE). As per the contract, ICE was required to perform civil preliminary and general earthworks, dams, crushing, etc. the contract provides that in the event of a dispute between the parties, they will revert to arbitration in resolving the dispute. The contract also provides that ICE obtained an indemnity bond so as to guarantee the performance of the contract. Consequently, ICE contacted Mutual Benefits Assurance Company, informant herein, and the informant issued the following performance bonds in favor of the respondent:

- a. Performance Bond with policy No.: MBA/PRB/2/0184/K/012 for the sum of Four Million United States Dollars dated December 7, 2013.
- b. Advance Payment Guarantee Bond with policy No.: MBA/APB/0185/K/012 for the sum of One Million United States Dollars dated January 16, 2014.
- c. Advance Payment Guarantee Bond with policy No.: MBA/APB/2/0185/012 for the sum of Five Million United States Dollars dated April 22, 2014

The records further show that due to disagreements between International Construction & Engineering (Liberia) Inc. (ICE) and the respondent, ICE instituted an action of damages for wrong on September 5, 2014, in the Sixth Judicial Circuit, Civil Law Court for Montserrado County against the respondent. Based upon a motion to dismiss that the respondent filed along with its answer, the Civil Law Court, on November 14, 2014, after a hearing had dismissed ICE's complaint, to which ICE interposed exceptions and announced an appeal. This appeal is still pending undetermined before this Court. Subsequently, the respondent proceeded to the Commercial Court and instituted an action of damages for breach of contract against the Informant to recover under the "Irrecoverable and Unconditional Advance Payment Guarantee" issued by the informant for International Construction & Engineering (Liberia) Inc. (ICE) with respondent being the beneficiary, for the breach of Contract No. C8128-C-0104.

On March 31, 2015, ICE filed a motion to intervene and intervener's answer and a motion to dismiss on the ground that an appeal was pending between the same parties for the same cause before the Supreme Court. The Informant also filed a motion to dismiss on the ground that the Commercial Court lacks jurisdiction over

the matter considering the arbitration clause contained in contract#: C8128-C-0104, the breach of which is the subject of the Irrevocable and Unconditional Advance Payment Guarantee. The Commercial Court granted the motion to intervene but denied the motion to dismiss on the ground that the informant was not a party to the agreement providing for arbitration. ICE entered exceptions to this determination by the Commercial Court and fled to the Chambers of the Supreme Court with an application for a writ of Certiorari. After a hearing, the Justice in chambers at the time ruled, granting the preemptory writ and ordering that the determination of the Commercial Court dismissing the motion to dismiss be reversed and the action ordered dismissed. Dissatisfied with this determination, the respondent entered exceptions and appealed this Chambers' ruling to the Supreme Court. The records show that this appeal was subsequently abandoned, and the matter was ordered returned to the Commercial Court to resume jurisdiction and proceed in keeping with the mandate of the Chambers Justice.

The matter having been dismissed as per the ruling of the Justice in chambers and in keeping with the letters and spirit of the opinion of the Chamber Justice, ICE proceeded to take advantage of the arbitration clause. At the conclusion of the arbitration hearing, the arbitrator entered the following awards:

"The Award

Accordingly, the tribunal makes and publishes this award and directs as follows:

- (1) That the Claimant Contractor's Claim is dismissed.
- (2) That the Claimant Contractor forthwith pays to the Respondent Employer damages in the counterclaimed in the sum of US\$6,990.626.28 (Six million nine hundred and ninety thousand six hundred and twenty-six US dollars and twenty-eight US cents) together with compound interest thereon, at quarterly rates, at the rate of 2% (two percent) from 23rd January 2017 until the date of the full payment of the damages.
- (3) That the Claimant Contractor forthwith pays to the Respondent employer the legal and other costs in this Arbitration in the assessed sum of GBP 2,700,000.00 (two million seven hundred thousand pounds sterling) together with compound interest thereon, at quarterly rests, at the rate of 2% (two percent) from 23rd January 2017 until the date of the full payment of the costs."

Armed with the outcome of the arbitration and the awards contained therein, the respondent proceeded to the Commercial Court and instituted an action of debt against the Informant based upon the Irrecoverable Advance Payment Guarantee and indemnity/Performance bonds issued by the Informant for the benefit of the respondent. After the pleadings rested, the Commercial Court had a pre-trial conference, at the conclusion of which the Commercial Court determined that the

informant was liable to the respondent in the amount sued for. The informant entered exceptions to this ruling and announced an appeal to this Court. Subsequently, the informant filed its approved bill of exceptions, and, as in keeping with the practice in the Commercial Court, a bill of costs was prepared and taxed by all of the parties, including the informant, and approved by the Commercial Court judge. The Commercial Court, in keeping with Article IV of the Commercial Court Act, opened an escrow account with the GT-Bank for the purpose of the informant depositing the judgment amount in the said account. Failing to deposit the judgment sum, the informant fled to the Chambers Justice by a petition for a writ of prohibition. After a hearing on the petition, the Chambers Justice ordered the alternative writ quashed, denied the issuance of the peremptory writ of prohibition, and ordered the informant to complete the appeal process. We here quote the relevant part of the Chamber Justice's ruling:

"...This Court says that given that this case emanated from the Commercial Court and is subject to Article IV of the Commercial Court Act, we state here that there is nothing substantive about this case before the Commercial Court except for the Commercial Court to allow the appellant complete the appeal process by the designation and opening of an escrow account to enable the appellant deposit the full judgment sum; file an approved appeal bond if the Commercial Court so required, which in the instant case was not required and then allow the appellant to serve and file his/her notice of completion of appeal.

In view of the above, we hold that the Petitioner/Mutual Benefit Assurance is obligated and required to complete the appeal process, which is the only remedy available to it, plus the fact that the Commercial court's jurisdiction is restricted only to allow the petitioner/Mutual Benefit Assurance pay the judgment sum into an escrow account and complete the appeal process.

WHEREFORE AND IN VIEW OF THE FOREGOING, the alternative writ of prohibition issued is quashed, and the peremptory writ of prohibition is denied. The Clerk of this Court is ordered to send a mandate to the Commercial Court to resume jurisdiction and allow the petitioner/Mutual Benefit Assurance to perfect its appeal in keeping with law."

The Informant feeling aggrieved by the ruling entered by the Chamber Justice, appealed to the Full bench of the Supreme Court. After argument had, this Court on the 25th day of January, 2023, entered an Opinion in which it affirmed the ruling of the Chambers Justice. In the Judgment of the Opinion, this Court held as follows:

"That the appellant having announced an appeal to the Honorable Supreme Court, filed its approved bill of exceptions within the time allowed by the appeal statute, and thereby ousting the trial court of jurisdiction and subsequently taxed the bill of costs emanating therefrom, the appellant cannot abort the appeal process and substitute it with an application for a writ of prohibition; and

That all appeals growing out of judgments (awards) emanating from the Commercial Court, whether by arbitration or through regular trial, are governed by Article IV of the Act which created the Commercial of Liberia; hence, the appellant should proceed to perfect its appeal *non pro tunc*."

On the 9th day of February, A.D. 2023, nearly one month after the Opinion of this Court, the informant filed a nineteen count bill of information in which it substantially averred that the Supreme Court acknowledged in its decision rendered on January 25, 2023 that there were two Chambers Justice rulings one of which granted the peremptory writ of certiorari against the Commercial Court of Liberia and the respondent on ground that the informant had the right to protect and defend its interest under any indemnity contract/bond it had issued on behalf of the International Construction Company (ICE), which in essence reversed the ruling of the Commercial Court; that the Chambers Justice' ruling dated August 10, 2015 was in reference to an action of damages for breach of contract filed before the Commercial Court against the informant on grounds that the informant issued an irrevocable and unconditional advance payment guarantee bond for US\$1,000,000.00; that in responding to the action aforesaid, the informant filed a motion to dismiss for lack of jurisdiction relying on *Civil Procedure Law Rev. Code: 1: 64.1* and the common law: that the Commercial Court denied the informant's motion on grounds that it is not a party to the ICE Contract No. C8128-C-0104 because the said contract is separate and distinct from the advance payment guarantee contract; that the Commercial Court found the informant liable based on clause 2 of the contract it had ruled that the informant was not a party to; that the Commercial Court summarily ruled during the pre-trial conference without taking evidence; that the informant asserted before the Commercial Court that the Supreme Court declared that it lacked jurisdiction to enforce the terms of clause 2 of the irrevocable and unconditional advance payment guarantee; that in the face of the Chambers ruling dated August 10, 2015, the act of the respondents to have disregarded that ruling amounts to a contempt of the Court for which reason the bill of information will lie; and that for the respondents to be able to defeat this information, they have the burden to demonstrate that they complied with the Supreme Court's ruling, *ibid*. The informant, therefore, prays this Court to find that the Commercial Court lacks jurisdiction now as it did then and oust the Commercial Court of all and any authority to enforce the April 29, 2022 judgment as well as grant unto the informant any and all other relief that the Court may deem just, equitable, and legal.

Responding to the bill of information, the respondent also substantially averred that the issues raised in the informant's information were the same issues raised in the informant's petition for a writ of prohibition decided by the Court on the 25th day of January, A.D. 2023, and therefore the sole purpose of the information is to hinder the effective administration of justice; that the filing of this information is contemptuous and a violation of the lawyers' oath because the information "tends to undermine or impugn the authority, dignity, and integrity of this Court; that the Judgment of this Court ordered the Clerk to mandate the Commercial Court to resume jurisdiction and give effect to its Judgment based upon which the Commercial Court took step to notify the parties of the opening of the escrow account at the G.T. Bank for the informant to perfect its appeal after the reading of the Court's Mandate; that contrary to the prescribed rules of the Supreme Court as provided for in Part 12(a) of the Rules of the Supreme Court, Counsellor Aloysius T. Jappah, counsel for the informant, defies and disobeys the Judgment of this Court by raising the very same issues passed upon by this Court in the prohibition proceedings; that the informant has failed to state any irregularities, wrong doing and/or usurpation of the province of the Court by the Commercial Court; that the averments as contained in the information show that the bill of information grew out of a Chambers Justice's Ruling dated August 10, 2015; and that assuming without admitting that the information filed in consequence of the Chambers Justice Ruling dated August 10, 2015 was proper, the informant suffers waiver and laches having waited eight (8) years and having failed to raise the contention before the Commercial Court in the action of debt from which final ruling, the informant announced an appeal, filed an approved bill of exceptions and taxed the bill of costs. The respondent, therefore, prays this Court to deny and dismiss the informant's bill of information and grant unto the respondent any and all other relief that this Court may deem just, equitable, and legal.

This Court says that a review of the facts as revealed by the records, arguments and legal authorities in support of the parties' arguments, we certify a single issue for the disposition of this information; and that is whether, given the fact and circumstances as outlined in the bill of information, the returns thereto, the parties' brief and the arguments had during the hearing, this bill of information will lie against the enforcement of this Court's Mandate of January 25, 2023.

To begin with, the action of damages instituted by the respondent in the Commercial Court, which culminated in the Chambers Justice ruling of August 10, 2015, reversing the Commercial Court's ruling denying the informant's motion to dismiss, was concluded by a mandate from this Court in a Judgment Without Opinion handed down on November 15, 2019. By that Judgment, the commercial court dismissed the respondent's action of damages. Additionally, ICE, rather than the respondent, initiated the arbitration proceedings consistent with the August 10, 2015 ruling of the Chambers Justice, which is the subject of the action of debt. More besides, and as indicated herein supra, the informant issued three bonds as provided for by the Contract between ICE and the respondent as follows: one performance bond in the amount of US\$1,000,000.00 and two indemnity bonds in the amount of US\$4,000,000.00 and US\$5,000,000.00. Taking all of the above into consideration, along with the arbitration award, the final judgment of the Commercial court, the post-trial actions by the informant, and this Court's clear and unambiguous Mandate of January 25, 2023, we are at a loss as to the bases of this bill of information. The relevant portion of our Mandate read as follows: "That the appellant having announced an appeal to the Honorable Supreme Court, filed its approved bill of exceptions, within the time allowed by the appeal statute, and thereby ousting the trial court of jurisdiction and subsequently taxed the bill of cost emanating therefrom, the appellant cannot abort the appeal process and substitute it with an application for a writ of prohibition. *Mutual Benefit Assurance Company (MBAC) v. Bea Mountain Mining Corporation (BMMC)*, Supreme Court Opinion, October Term, A.D. 2022. From all indications, we see the filing of this bill of information by the counsel for the informant as nothing more than a dilatory machination intended to baffle the enforcement of the January 25, 2023 Mandate of this Court, an act we have repeatedly refused to countenance in no uncertain terms. *Messrs. Varney Lartey et al. v. His Honor James E. Jones*, Supreme Court Opinion, March Term, A.D. 2020, *The Management of Inter-Com Security Systems v. Her Honor Comfort S. Natt et al.*, Supreme Court Opinion, March Term, A. D. 2021.

Rule IV, Part 12 of the Revised Rules of the Supreme Court provides as follows:

"A bill of information will lie to prevent a Judge or any Judicial Officer who attempts to execute the mandate of the Supreme Court in an improper manner from doing so with the Judgment and /or Mandate of the Supreme Court.

- a) A bill of information will also lie to prevent anyone whomsoever from interfering with the Judgment of and/or Mandate of the Supreme Court.
- b) Any Counsellor who files a bill of information before the Supreme Court assigning reasons therefor other than the reasons expressly prescribed by these Rules shall be penalized by the imposition of a fine, suspension or disbarment”.

Our review of the records has shown that Counsellor Aloysius T. Jappah is in violation of the above-quoted rules. This Court will not at this time impose a penalty; however, Counsellor Aloysius T. Jappah is hereby warned seriously that if he is found to be in violation of these rules, this Court will take the necessary action deemed appropriate.

WHEREFORE, and in view of the foregoing, the bill of information is denied. The Clerk of this Court is ordered to send a mandate to the court below commanding the judge presiding therein to resume jurisdiction over this case and give effect to the Judgment of this Opinion. AND IT IS HEREBY SO ORDERED.

When this case was called for hearing Counsellor Aloysius T. Jappah appeared for the informant. Counsellors Eugene L. Massaquoi and Kunkunyon Wleh Teh appeared for the respondent.